

**IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD**

THE HON'BLE SMT. JUSTICE T. MADHAVI DEVI

I.A.No.1 of 2025 in WRIT PETITION No.33664 of 2024,

I.A.No.2 of 2025 in WRIT PETITION No.33664 of 2024

AND

CONTEMPT CASE No.799 of 2025

Date: 19.12.2025

I.A.No.1 of 2025 in W.P.No.33664 of 2024

Between:

The State of Telangana and 5 others

... Review Petitioners

AND

M. Mahender Reddy

...Respondent

I.A.No.2 of 2025 in W.P.No.33664 of 2024

Between:

The State of Telangana and 5 others

... Review Petitioners

AND

M. Mahender Reddy

...Respondent

CONTEMPT CASE No.799 of 2025

Between:

M. Mahender Reddy

... Petitioner

AND

Sri D.S. Lokesh Kumar and 5 others

...Respondent

COMMON ORDER

I.A.No.1 of 2025 in W.P.No.33664 of 2024 is filed seeking permission to dispense with the filing of the certified copy of the order dated 03.01.2025 passed in W.P.No.33664 of 2024. For the reasons stated in the accompanying affidavit filed in support of the application, the filing of the certified copy of the order the dated 03.01.2025 passed in W.P.No.33664 of 2024 is dispensed with. Accordingly, and I.A.No.1 of 2025 in W.P.No.33664 of 2024 is allowed.

2. I.A.No.2 of 2025 in W.P.No.33664 of 2024 is filed seeking review of the order of this Court dated 03.01.2025 passed in W.P.No.33664 of 2024. The review application is filed by the respondents in the writ petition.

3. The writ petitioner has filed W.P.No.33664 of 2024 seeking a Writ of Mandamus declaring the action of the respondents in not making payment of final bill to the petitioner, pursuant to the agreement bearing Nos.263/2023-24 dated 12.09.2023, 262/2023-24 dated 12.09.2023 and 120/2023-24 dated 20.06.2023, as illegal and

arbitrary and consequently to direct the respondents to release the amounts to the petitioner and to pass such other order or orders.

4. *Vide* orders dated 03.01.2025, W.P.No.33664 of 2024 was disposed of with a direction to respondent No.6 therein to make payments on or before 24.01.2025 and if there is any delay thereafter, then the same shall be paid with interest at the rate of 12% p.a. and not later than 07.02.2025. It was also made clear that if the payment is not made by then also, compound interest shall be levied on the respondents.

5. Alleging willful non-compliance and disobedience of the directions of this Court, the writ petitioner has filed C.C.No.799 of 2025 on 24.03.2025. After issuance of notice in the contempt case, the respondents have now filed review application in I.A.No.2 of 2025 seeking review of the direction to pay interest on the amounts due and payable to the writ petitioner.

6. Learned Special Government Pleader representing learned Additional Advocate General, appearing for the review petitioners, submitted that the writ petitioner had not claimed any interest in the writ petition and that granting of interest is causing grave hardship to

the respondents. It is further submitted that there was no adjudication as to whether the writ petitioner would be entitled for the interest or not under the contractual terms of the agreements and therefore, granting of interest may be reviewed.

7. Learned counsel for the writ petitioner submitted that though the work was executed by the petitioner in the year 2023, the payments were not made and taking the same into consideration, this Court had granted interest at the rate of 12% per annum.

8. Having regard to the rival contentions and the material on record, this Court finds that the petitioner has not claimed interest in the writ petition. However, taking the hardship of the petitioner into consideration, this Court had granted the relief of interest while also taking into the consideration the contentions of the respondents. However, this Court is inclined to review the order dated 03.01.2025 in W.P.No.33664 of 2024 to the extent of the grant of interest. Accordingly, the review application in I.A.No.2 of 2025 in W.P.No.33664 of 2024 is allowed and the order of the Court dated 03.01.2025 in W.P.No.33664 of 2024 is modified as under:

“In view of the above submissions, respondent No.6 is directed to make payments due to the petitioner on or before 24.01.2025 and the petitioner is permitted to make an appropriate representation to the competent authority for payment of interest, as per law.”

9. In view of the review application being allowed and considering that the amount due to the petitioner has already been paid by the respondents, as reflected in the letter dated 11.07.2025 which was placed before this Court on 22.07.2025, this Court is satisfied that the order passed by this Court has been complied with.

10. In the result, -

- (i) Dispense with application in I.A.No.1 of 2025 in W.P.No.33664 of 2024 is allowed.
- (ii) Review application in I.A.No.2 of 2025 in W.P.No.33664 of 2024 is allowed.
- (iii) C.C.No.799 of 2025 is closed. There shall be no order as to costs. Miscellaneous applications, if any, pending shall stand closed.

JUSTICE T. MADHAVI DEVI

Date: 19.12.2025
PRN

THE HON'BLE SMT. JUSTICE T. MADHAVI DEVI

I.A.No.1 of 2025 in W.P. No.33664 of 2024,
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